



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd, Senior Planner
Subject: PLTA-24-3 – Sign Incentives Text Amendment
Date: April 22, 2024

Background:

The item for consideration is a **UDC Text Amendment**. This is approved by **Ordinance**.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 4/22/2024
- Public Services Committee 5/7/2024
- Second reading 5/13/2024
- Public Services Committee 5/21/2024
- Third and final reading 5/28/2024

Planning Commission Recommendation:

The Planning Commission heard this item at their April 15, 2024, meeting. The Planning Commission Staff Report included options for consideration of alternative heights and areas. After debate, the Planning Commission settled on the alternative presented by Staff – unanimously voting to recommend the Governing Body approve the proposed text amendment as presented by Staff.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Redlined Ordinance
3. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING SUBSECTIONS 6.5.4.b.3 INCENTIVES / BONUS, 6.5.4.b.4 CREATIVE SIGN PROGRAM, AND 6.5.8.j BILLBOARDS OF THE UNIFIED DEVELOPMENT CODE, TO RESTRUCTURE SIGN INCENTIVES AND BONUSES BY MODIFYING ALLOWANCES FOR SIGNS NEAR INTERSTATE HIGHWAYS, ALLOWANCES FOR SHARED SIGNS, ELIMINATING THE CREATIVE SIGN PROGRAM, AND CLARIFYING APPLICABILITY OF CERTAIN BILLBOARD ALLOWANCES."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendment to the Unified Development Code (UDC) that is the subject of this ordinance meets the review criteria specified in Section 2.4.1.d of the UDC.

Section 2. That on April 15, 2024, the Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment.

Section 3. That Subsection 6.5.4.b.3 Incentives / Bonus, of Subsection 6.5.4.b Mixed-Use, Commercial and Industrial Zoning Districts, of Subsection 6.5.4 Sign Allowances, of Section 6.5 Signs, of Article 6 Design Regulations, of the Unified Development Code of the City of Cheyenne, Wyoming, is hereby amended as set out in this section:

3. Incentives / Bonuses.

- (a) Materials. A 10% bonus in the maximum permitted sign allowance for Freestanding Signs may be provided if a Freestanding Sign is designed to integrate with the building structure. The sign is considered integrated if the same or similar building materials and colors are used. If there is disagreement whether a sign is integrated, the Director shall make a final decision. The bonus can be applied to both height and area.
- (b) Landscape. A 10% bonus in the maximum permitted sign allowance for Freestanding Signs may be provided if a Freestanding Sign is located within a landscaped area. The bonus may be granted if a minimum of 4 square feet of landscaping is provided for every 1 square foot of sign area. If the Freestanding Sign is integrated into a raised planter box, the landscaped area may be reduced to one square foot of landscaping for every one square foot of sign area. The bonus can be applied to both height and area.
- (c) Building Location. A 10% bonus in the maximum permitted sign allowance for Building Signs and Pedestrian Signs may be provided in the MUR, MUB, NB, and CB districts where the building is located within 10' of the street right-of-way, and where no Freestanding Ground Signs are constructed.
- (d) Master Sign. Any sign approved as a Master Sign through the Master Sign Program (as outlined in Section 6.5.5.e) may have an increase in area and height as follows:
 - i. Area. To qualify for an area bonus, a minimum of 4 tenants must contribute to the Master Sign. The area on a Master Sign may be increased by 50% for every sign

removed or by 8 square feet per tenant space on the sign – whichever is greater. However, in no case shall the sign exceed 400 square feet in total area.

ii. Height. To qualify for a height bonus, a minimum of 4 tenants must contribute to the Master Sign. The maximum height of a qualifying Low-Profile Master Sign is 75% of the maximum height of a Freestanding Sign placed at the same location as the Master Sign. The maximum height of a qualifying Freestanding Master Sign is 125% of the Freestanding Sign's height allowance.

(e) Near-interstate signs. Any parcel in a non-residential zone district and within 1000 ft of the I-25 or I-80 rights of way may have one extra Freestanding Sign which may have a bonus in area and height with the following regulations:

i. 30' minimum clearance between the ground and the base of the sign

ii. 60' maximum height

iii. 200 square feet maximum area

iv. be located on the half of the parcel closest to the interstate right-of-way

v. EMC size maximum may be increased from 25% of the allowed sign area to 40% of the allowed sign area

vi. If the parcel abuts the interstate right-of-way, this 'extra' sign replaces the allowance for a ground sign for the interstate right-of-way street frontage

Section 4. That Subsection 6.5.4.b.4 Creative Sign Program, of Subsection 6.5.4.b Mixed-Use, Commercial and Industrial Zoning Districts, of Subsection 6.5.4 Sign Allowances, of Section 6.5 Signs, of Article 6 Design Regulations, of the Unified Development Code of the City of Cheyenne, Wyoming, is eliminated in its entirety.

Section 5. That Subsection 6.5.8.j, of Subsection 6.5.8 Billboards, of Subsection 6.5.4, of Section 6.5 Signs, of Article 6 Design Regulations, of the Unified Development Code of the City of Cheyenne, Wyoming, is hereby amended as set out in this section:

j. Billboards ~~and on-premises signs~~ on properties within 1,000' of Interstate 25 and Interstate 80 right-of-way shall conform to the following:

1. Billboards ~~and on-premises signs~~ shall not exceed 672 square feet in area. Proof of compliance with applicable laws, rules and regulations of the State of Wyoming shall be presented to the building official along with sign permit applications.

2. Billboards ~~and on-premises signs~~ on properties ~~adjacent to~~ within 1000' of interstates on the same side of the interstate shall be at least 500' apart.

3. Billboards ~~and on-premises signs~~ shall not exceed 60' in height.

Section 6. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
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A COMMUNITY OF CHOICE

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2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

PLANNING COMMISSION

APRIL 15, 2024

STAFF REPORT

REQUEST: A Text Amendment amending subsections 6.5.4.b.3 and 6.5.8.j of the Unified Development Code (UDC), changing sign incentives to allow larger signs for interstates and for master signs and to clarify associated language

CASE NUMBER: PLTA-24-3

PREPARED BY: Seth Lloyd, Senior Planner, Planning and Development Department

RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** text amendments to the Unified Development Code subsections 6.5.4.b.3 and 6.5.8.j as outlined in this staff report and recommended by staff, noting the requests meets the review criteria of UDC 2.4.1.d.

BACKGROUND:

The City's Unified Development Code (UDC) was adopted by the Governing Body on January 23, 2012, by Ordinance Number 3943 with an effective date of April 30, 2012. The Unified Development Code is the regulatory document carrying out the vision of PlanCheyenne and is reviewed annually pursuant to UDC 1.1.7 [Annual Review Requirement] to determine if any particular standard or regulation is timely, relevant and adequately addresses current market conditions. In addition to the annual review, the Planning and Development Director and City Engineer are authorized under UDC 2.4.1.b.3 to bring forward text amendments on their own initiative.

The proposed text amendment is to change sections of the sign code to clarify incentives and bonuses. With the adoption of the UDC, signs were not allowed to go over 20 feet in height, and signs 20 feet high were limited to 70 square feet of area. This is not conducive to communicating to traffic an interstate. The City code has a Master Sign Program encouraging consolidating signs, but does not give any bonuses to the consolidated sign. To resolve this issue, applicants have had to go through assorted processes to get their signs approved – most frequently via the variance process. However, the variance process is supposed to be for properties in a unique situation that is not applicable to other properties in the area.

Staff met with the Council in January 2024 in a work session to discuss various UDC issues and to get feedback on what to prioritize. Although a comprehensive sign amendment may be warranted, it appeared to Staff that the Council was lukewarm on the idea. When Staff mentioned the need to update

specific sections of sign code which have been problematic (especially highway signage), it appeared to Staff that the Council was more amenable to hearing this type of item.

Generally, the proposed amendments has four parts.

The first part creates a new bonus for highway signs. This is for properties is within 1,000 feet of I-80 and I-25, requires a minimum clearance (to encourage communication with the interstate), and allows for a larger height and area allowance.

The second is the creation of a bonus for signs which have received approval as Master Sign Program pursuant to UDC 6.5.5.c. This allows for an increase in height and area as an incentive to co-locate, and for effective communication when multiple tenants are in a complex.

The third part is the removal of the Creative Sign Program. This part of the UDC has problems with not including objective review criteria and can lead to arbitrary decisions or could result in the Program becoming a path around the sign code.

The fourth item is clarifying language found in Section 6.5.8.j of the Unified Development Code. Section 6.5.8 is generally for Billboards, but contains the text “on premises signs” in 6.5.8.j. This has led to some confusion on code interpretation by Staff and applicants.

This is likely an unintended copy-paste error when language from Title 17 was brought into the UDC, and Staff has interpreted this section as a copy-paste error. To take the section at face value, sites near the interstate would only be allowed one sign on their entire site, including building, incidental, window, and ground signs – as it would put a restriction of a 500’ buffer between ‘on premises’ signs. Although this section is not written as a ‘bonus’ for on-premises signs (superseding Section 6.5.4), if it were read or interpreted that way, billboard-sized signs could be placed on residential properties (as there is no zone directly mentioned in 6.5.8.j; and Section 6.5.8.a controlling what zones allow billboards does not include the “on premises signs” text).

PROPOSED AMENDMENTS:

UDC 6.5.4.b.3:

3. Incentives / Bonuses.

- (a) **Materials.** A 10% bonus in the maximum permitted sign allowance for Freestanding Signs may be provided if a Freestanding Sign is designed to integrate with the building structure. The sign is considered integrated if the same or similar building materials and colors are used. If there is disagreement whether a sign is integrated, the Director shall make a final decision. **The bonus can be applied to both height and area.**
- (b) **Landscape.** A 10% bonus in the maximum permitted sign allowance for Freestanding Signs may be provided if a Freestanding Sign is located within a landscaped area. The bonus may be granted if a minimum of 4 square feet of landscaping is provided for every 1 square

STAFF COMMENTARY:

Consistent pluralization of the title Naming bonus types for easy reference.

Codifying current policy.

PROPOSED AMENDMENTS:

- foot of sign area. If the Freestanding Sign is integrated into a raised planter box, the landscaped area may be reduced to one square foot of landscaping for every one square foot of sign area. **The bonus may be applied to both height and area.**
- (c) **Building location.** A 10% bonus in the maximum permitted sign allowance for Building Signs and Pedestrian Signs may be provided in the MUR, MUB, NB, and CB districts where the building is located within 10' of the street right-of-way, and where no Freestanding Ground Signs are constructed.
- (d) **Master Sign.** Any sign approved as a Master Sign through the Master Sign Program (as outlined in Section 6.5.5.c) may have an increase in area and height as follows:
- i. **Area.** To qualify for an area bonus, a minimum of 4 tenants must contribute to the Master Sign. The area on a Master Sign may be increased by 50% for every sign removed or by 8 square feet per tenant space on the sign – whichever is greater. However, in no case shall the sign exceed 400 square feet in total area.
 - ii. **Height.** To qualify for a height bonus, a minimum of 4 tenants must contribute to the Master Sign. The maximum height of a qualifying Low-Profile Master Sign is 75% of the maximum height of a Freestanding Sign placed at the same location as the Master Sign. The maximum height of a qualifying Freestanding Master Sign is 125% of the Freestanding Sign's height allowance.
- (e) **Near-interstate signs.** Any parcel in a non-residential zone district and within 1000 feet of the I-25 or I-80 rights of way may have one extra Freestanding Sign which may have a bonus in area and height with the following regulations:
- i. 30' minimum clearance between the ground and the base of the sign

STAFF COMMENTARY:

Codifying current policy.

Inclusion of a bonus for the Master Sign Program (from UDC 6.5.5.c).

A one- or two-tenant sign did not seem to truly meet the intent of the Master Sign Program.
To incentivize sign removal.
To allow for communication in a multi-tenant, single-parcel development.

To prevent an unusually large sign.
Point of reference: the Menard's Master Sign is 400sqft in area.
An increase in height to allow for effective communication.

Inclusion of a near-interstate sign bonus.

1000 feet is distance where billboards change from near-interstate to not-near-interstate
If the purpose is to communicate with the interstate, they should not be used for 'normal street' type signage.

PROPOSED AMENDMENTS:

- ii. 60' maximum height
- iii. 200 square feet maximum area
- iv. Be located on the half of the parcel closest to the interstate right-of-way.
- v. EMC size maximum may be increased from 25% of the allowed sign area to 40% of the allowed sign area.
- vi. If the parcel abuts the interstate right-of-way, this 'extra' sign replaces the allowance for a ground sign for the interstate right-of-way street frontage.

UDC 6.5.4.b.4 (removed in its entirety):

~~4. Creative Sign Program. The purposes of this Creative Sign Program are to; encourage signs of unique design, exhibiting a high degree of thoughtfulness, imagination, inventiveness, spirit and sense of place; and provide a process for the application of sign regulations in ways that will allow creatively designed signs that make a positive visual contribution to the overall image of the City. No more than one creative sign permit may be approved per lot. A creative sign application will be processed in accordance with the process for a Special Use Permit in Article 2. The application shall include all information and materials required by the department. In addition to applicable criteria in for the special use permit, the following criteria will be evaluated by staff and the governing body:~~

- ~~(a) Design Criteria. The proposed sign constitutes a substantial aesthetic improvement to the site and shall have a positive visual impact on the surrounding area by enhancing the character of the building and area; and be of unique design and exhibits a high degree of thoughtfulness, imagination, inventiveness, and spirit;~~

STAFF COMMENTARY:

Current billboard height. A table is provided in the appendix of reference sign heights for consideration of alternatives. Staff suggested sign area based on multiple factors. A table is provided in the appendix of reference sign heights for consideration of alternatives.

If the purpose is to communicate with the interstate, they should not be used for 'normal street' type signage.

Staff suggested EMC area based on multiple factors. A table is provided in the appendix of reference sign heights for consideration of alternatives.

To clarify the allowance of 'extra' versus 'normal' when it comes to UDC 6.5.4.b, Table 6-16 "1

Freestanding or Low-profile Sign per street frontage or building complex"

This program as written has issues with objective consistency. It could easily become the subject of arbitrary decisions or as a way to get out of all sign code regulations.

PROPOSED AMENDMENTS:

~~and provide strong graphic character through the imaginative use of graphics, color, texture, quality materials, scale, and proportion.~~

~~(b) Contextual Criteria. The sign shall contain at least one of the following elements:~~

- ~~i. Creative image reflecting current or historic character of the City;~~
- ~~ii. Symbols or imagery relating to the use of the property;~~
- ~~iii. Inventive representation of the use, name, logo, structure or business.~~

~~(c) Architectural Criteria. The sign utilizes and/or enhances the architectural elements of the building; and placed in a logical location in relation to the overall composition of the building's façade surrounding uses and not cover any key architectural features/details of the façade.~~

UDC 6.5.8.j

- j. Billboards ~~and on-premises signs~~ on properties within 1,000' of Interstate 25 and Interstate 80 right-of-way shall conform to the following:
1. Billboards ~~and on-premises signs~~ shall not exceed 672 square feet in area. Proof of compliance with applicable laws, rules and regulations of the State of Wyoming shall be presented to the building official along with sign permit applications.
 2. Billboards ~~and on-premises signs~~ on properties ~~within 1,000' of adjacent to~~ interstates on the same side of the interstate shall be at least 500' apart.
 3. Billboards ~~and on-premises signs~~ shall not exceed 60' in height.

STAFF COMMENTARY:

Removes the questionable reference to 'on premises signs'.

Removes ambiguity created by the term 'adjacent'.

REVIEW CRITERIA:

Review of a UDC text amendment shall be measured by the following three (3) criteria of Section 2.4.1.d:

1. COMPREHENSIVE PLAN:

"The amendment is in accordance with general goals and policies of the Comprehensive Plan, or is necessary to address an emerging issue not anticipated in the Comprehensive Plan and is not inconsistent with the plan."

The Comprehensive plan encourages signage that identifies businesses without dominating the setting or skyline. However, the plan also calls for limited signage in community gateways (see "COMMUNITY GATEWAY" and Policy 5.6.A). The comprehensive plan also encourages the jurisdictions to manage or consolidate signage along major roadways and in commercial areas to

preserve scenic views, make identification of sites less confusing, and encourage more attractive sites. Unified signage design is also encouraged. New signage is proposed as a way to demonstrate re-investment in an existing commercial center.

The Master Sign Program encourages the consolidation of signs, but gives no bonus to such consolidation. By providing a bonus to the Master Sign program, this program may be more frequently used to remove sign clutter and unify sign design.

The main purpose of a sign is to promote communication with drivers to identify a desired destination. Signs that are too small or too short may defeat this purpose, but this purpose must be balanced with providing an attractive community. The current sign code does not allow ground signs which provide effective communication with the highway, but Staff's proposal is a modest allowance to allow for communication without dominating the skyline. Due to the City's stringent signage requirements, most entities re-use existing signs instead of proposing new signage. This makes the creation of new signage to demonstrate re-investment difficult.

2. STATE STATUTORY REQUIREMENTS:

The amendment is consistent with the Wyoming Statutes, and specifically the Municipal Planning and Zoning statutes. The following Articles are all listed verbatim from Wyoming State Statute.

WYO 15-1-601. Regulations; scope and purpose; uniformity within authorized districts; to follow plan; objectives.

(a) The governing body of any city or town, by ordinance, may:

(i) Regulate and restrict the:

(A) Height, number of stories and size of buildings and other structures;

(B) Percentage of lot that may be occupied;

(C) Size of yards, courts and other open spaces;

(D) Density of population; and

(E) Location and use of buildings, structures and land for trade, industry, residence or other purposes.

(ii) Establish setback building lines.

(b) The governing body may divide the city or town into districts of such number, shape and area as it deems necessary, and within those districts it may regulate and restrict the erection, construction, reconstruction, alteration, repair or use of buildings, structures or land.

(c) Regulations may differ from one (1) district to another but shall be uniform for each class or kind of buildings within a district.

(d) All regulations shall be made:

(i) In accordance with a comprehensive plan and designed to:

(A) Lessen congestion in the streets;

(B) Secure safety from fire, panic and other dangers;

(C) Promote health and general welfare;

(D) Provide adequate light and air;

(E) Prevent the overcrowding of land;

(F) Avoid undue concentration of population; and

(G) Facilitate adequate provisions for transportation, water, sewerage, schools, parks and other public requirements.

(ii) With reasonable consideration, among other things, of the character of the district and its peculiar suitability for particular uses;

(iii) With a view to conserving the value of buildings and encouraging the most appropriate use of land throughout the city or town; and

(iv) With consideration given to the historic integrity of certain neighborhoods or districts and a view to preserving, rehabilitating and maintaining historic properties and encouraging compatible uses within the neighborhoods or districts, but no regulation made to carry out the purposes of this paragraph is valid to the extent it constitutes an unconstitutional taking without compensation.

Assessment: This amendment proposes modifying the Unified Development Code to modify sections of code to regulate sign height and area (structural components). It also proposes a balance between effective communication and keeping the skyline from being too crowded.

3. HEALTH, SAFETY, AND PUBLIC WELFARE:

"The amendment promotes the general health, safety and public welfare."

This amendment would not adversely impact the general health, safety and public welfare of Cheyenne. Increasing the height and area of certain signs allows signs to perform their function of communicating location of a business. Better communication reduces the potential for swerving vehicles or having eyes removed from the road for a prolonged period of time trying to find and read signage. Putting limits on those increases reduces the potential for sign clutter or excessively large signs.

OUTREACH:

Staff sent an email to all contractors who were on a sign permit submitted since January 1, 2024. No substantive comments on the proposal were received at the time of writing this Staff report.

This text amendment is based on Staff's interactions with various applicants requesting signage from the adoption of the UDC into this year (2024).

CONCLUSION:

Staff concludes that this text amendment meets the review criteria of UDC 2.4.1.d.

STAFF RECOMMENDATION:

Staff recommends **approval** of text amendments to the Unified Development Code subsections 6.5.4.b.3 and 6.5.8.j as outlined in this staff report and recommended by staff, noting the requests meets the review criteria of UDC 2.4.1.d.

ATTACHMENTS:

1. List of potential alternates for highway-oriented signage
2. [Height and Area allowance worksheet based on a model sign code](#)

Attachment 1**List of potential alternates for highway-oriented signage**

Note: The “model sign code” is the “A Legal and Technical Exploration of On-Premise [sic] Sign Regulation: An Evidence Based Model Sign Code” produced by Urban Design Associates, College Station, Texas. Formula and formula worksheet also attached.

Height

Height measurements for consideration of an alternative height allowance:

- 20ft – current freestanding sign allowance
- 40ft – current non-interstate billboard allowance (UDC 6.5.8.k)
- 56ft - new Maverick off of Campstool (recently approved via variance, not yet constructed)
- 58ft- current Pilot off of Campstool
- 60ft - original Pilot
- 60ft – interstate billboard allowance (UDC 6.5.8.j)
- 60ft - Model sign code suggestion based on a sign communicating 12 characters of text
- 65ft – Model sign code suggestion based on a sign communicating 16 characters of text
- 75ft - Model sign code suggestion based on a sign communicating 25 characters of text

Area

Area measurements for consideration of an alternative area allowance:

- 100sqft - Model sign code suggestion based on a sign communicating 12 characters of text
- 110.5sqft - current Pilot identifier
- 150sqft - new Maverick identifier
- 160sqft – Model sign code suggestion based on a sign communicating 16 characters of text
- ~186sqft - original Pilot identifier
- 288sqft – current non-interstate billboard allowance (UDC 6.5.8.k)
- 300sqft - new Maverick identifier + EMC
- 326sqft - current Pilot (all)
- 340sqft - Model sign code suggestion based on a sign communicating 25 characters of text
- ~402sqft - original Pilot (all)
- 672sqft – Interstate Billboard allowance (UDC 6.5.8.j)

EMC percentage

EMC percentage measurements for consideration of an alternative area allowance:

- Typical Freestanding sign: 25%
- Pilot (original): ~34%
- Typical Low-Profile sign: 40%
- Pilot (current): ~41%
- New Maverick: just under 50%
- Electronic Billboard (requires 3 credits): 100%